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**BEFORE THE HON'BLE SOLE ARBITRATOR, MR.
NITIN N. SARDESSAI, SR. ADVOCATE, PANAJI GOA**

IN THE MATTER OF

Mr. Vikarm Shah
son of late Chinubhai Manilal Shah,
aged about 73 years, married,
businessman, Indian National,
resident of 28, Capri Building,
9, Manav Mandir Road,
Near Teen Batti Walkeshwar,
Malabar Hill,
Mumbai – Maharashtra,
400 006.

...Claimant

Versus

1. Mr. Riva Trindade
Major of age, Resident of
Palbrika Mansion,
NIO Circle,
Dona Paula,
Tiswadi, Goa - 403004;

2. Mrs. Albertina Trindade
Major of age,
Resident of Palbrika Mansion,
NIO Circle, Dona Paula,
Tiswadi, Goa - 403004;

3. Mrs. Karita Trindade
Major of age,
Resident of Palbrika Mansion,
NIO Circle, Dona Paula,
Tiswadi, Goa - 403004;

4. Mr. Murilidhar Sadarangani
Son of Shamdas Jetaram Sadarangani,
Aged about 55 years,
Resident of S-3, Edcn Hall,
Dr. Annie Beasant Road,
Worli, Mumbai - 400 018.

...Respondents

(all the above are registered addresses of the parties)

APPLICATION SEEKING INTERIM RELIEFS UNDER
SECTION 17 OF THE ARBITRATION AND
CONCILLATION ACT 1996

MAY IT PLEASE YOUR LORDSHIPS

The Claimant/Applicant above named most respectfully states and submits as under:

1. The Claimant has filed the a Claim against the Respondents in terms of Arbitration Clause of Articles of Association dated 01/04/2013 entered into between the Claimant, the Mr. Pascoal Trindade(Pascoal) and the Respondent No.4 herein.
2. The Claimant states that the Claimant craves leave of this Hon'ble Tribunal to refer and rely upon the averments made in the Statement of Claim and the documents annexed thereto for the purpose of adjudicating on the merits of this Application as if the same were incorporated herein verbatim; repetition of the same is avoided to further burden the docket of this Hon'ble Tribunal.
3. The Claimant states that as set out in the Statement of Claim, the Claimant, Mr. Pascoal Trindade and Mr. Murali

Sadarangi entered into M/s PVM Associates, vide Article of Association dated 01/04/2013 (AOA) in respect of the said properties i.e. Survey Nos. 93/3 and 93/4 of Village Bambolim.

4. A bare perusal of the Article of Association dated 01/04/2013, clearly brings out that the Claimant and Mr. Murali Sadarangi have advanced sums of Rs.71,00,000/- and Rs.68,50,000/- respectively, to Mr. Pascoal Trindade from time to time for the purpose of obtaining various clearances / sanctions / Nocs / license and payment towards Legal and professional charges with respect to the development to be undertaken on the said properties.
5. The Claimant states that the AOA dated 01/04/2013 also categorically records therein that Mr. Trindade, by way of his share of contribution to the Association thereby brought and introduced into the Association the said properties valued at Rs. 3,09,50,000/- and accordingly recorded in the

books of account of the Association. The members agreed that the capital account of Mr. Trindade, shall be credited amount of Rs.1,23,01,250/- and the balance amount of Rs.1,86,48,750/- was credited to the current account of Mr. Trindade. The said properties having been introduced into the Association ceased to remain properties of Mr. Trindade and were now properties of the Association and Trindade would hold the same for and on behalf of the Association.

6. The Claimant states that in accordance with the Agreement dated 25th April 2014, it was the responsibility of Late Mr. Pascoal Trindade and the Claimant to resolve any interferences/dispute by the Villagers in respect of the said properties at their own cost.

7. The Claimant states that Mr. Ram Daryanani, had contacted Late Pascoal Trindade several times to expedite the process of settling the litigation to enable the continuation of the stalled development activities in the said property.

8. The Claimant states that upon and after great persuasion the Claimant, the Late Mr. Pascoal Trindade agreed to settle the disputes raised by Comunidade of Bambolim amicably and requested the Claimant to negotiate the settlement terms with the Comunidade of Bambolim which terms were finally and mutually agreed by the parties concerned and accordingly a consent term draft was prepared and both the parties in the said suit viz. Comunidade of Bambolim and Late pascoal Mr. Trindade along with his wife Mrs. Albertina Trindade put their signatures of approval on the same.
9. The Claimant states that prior to the demise of Mr Pascoal Trindade, he had forwarded the draft of approved consent terms to the Claimant. However due to intervening Covid pandemic and due to the untimely demise of Mr Pascoal Trindade, the same could not be pursued further viz. obtaining various approvals from the Administrator of

Comunidade, Tribunal of Comunidade and Revenue Department Govt. of Goa. The consent terms remained to be filed before the Hon'ble Court.

10. The Claimant states that after untimely demise of Late Mr. Pascoal Trindade, the Claimant and the Respondent No.4 approached and solicited the co-operation of the Respondent Nos. 1 to 3 as legal representatives of Late Mr. Pascoal Trindade in order to defend the said suit, filling of consent terms. The other stake holders viz. M/s. Kuval projects pvt. Ltd. and M/s. Loonkar Developers Pvt Ltd. also vide their notices dated 22/02/2023 and 29/10 /2022 solicited the support and co-operation of the Respondent Nos. 1 to 3 in lieu of their huge investments in the said properties.

11. The Claimant states that the Respondent Nos. 1 to 3 however, without assigning any reasons whatsoever, despite being the legal heirs and representatives of Late Pascoal

Trindade and in spite of repeated requests and pleas by all the concerned parties, the Respondent Nos. 1 to 3 have neither responded nor come forward to co-operate to either attend or pursue the proceedings pending before the Hon'ble Court nor to sign documents required by intending purchaser.

12.The Claimant states that pursuant to the demise of Mr. Pascoal Trindade, the Respondent No.1 and 2 have been arrayed as parties to the Civil Suit as his legal representatives and heirs.

13.The Claimant states that in October 2020, the Claimant, with the knowledge and consent of the stake holders approached the comunidade of Bambolim seeking an amicable settlement of all the litigations and finalised the draft consent terms and accordingly, vide Letter dated 20/11/2020 addressed by Late Pascoal Trindade and his wife, to the Managing committee of the Comunidade of

Bambolim, a proposal of Settlement was offered in order to compromise all pending litigation and disputes with the Comunidade of Bambolim, the Respondent No.1 has admitted this fact in his deposition before the Hon'ble Civil Court as well.

14.The Claimant states that on the basis of the representation made by the Claimant and Late Mr. Trindade, Loonkar developers Pvt. Ltd. earmarked an area of 5,000 sq. mts. for allotment to the Comunidade of Bambolim for the construction of certain facilities to be used as a recreational and welfare centre for the villagers on mutually agreed terms by and between Loonkar Developers and PVM associates.

15.The Claimant states that vide Letter dated 27/11/2020, addressed by the Legal Representative of the Comunidade of Bambolim certain clarifications were sought in respect of

the terms of settlement and the Comunidade had informally accepted the same.

16. The Claimant states that in response to the letter dated 27/11/2020, the Claimant vide its legal representative addressed a communication dated 02/12/2020 and provided the clarification sought for by the comunidade specifically stating on instructions that Late Mr. Pascoal Trindade and Mrs. Albertina Trindade were ready and willing to execute the consent terms based on the settlement offered.

17. The Claimant states that as the terms of settlement with the Comunidade of Bambolim involves financial implications Late Mr. Pascoal Trindade and the other members of PVM Associates had mutually agreed to sell the property bearing survey no.93/4 to intending purchaser as identified by Late Mr. Pascoal Trindade, to generate the funding required to meet the commitments made vide the consent terms viz payment to Comunidade of Bambolim, payment to M/s.

Loonkar Developers Pvt. Ltd for and towards their allotment of part of their property and towards the construction cost of the football ground/welfare centre at the time of execution of consent terms and accordingly all the members of the consortium, were taken into confidence and their consent was taken in respect of the execution of Consent Terms and the allotment of the areas as required by the Comunidade of Bambolim at a very reasonable valuation. This clearly constituted a binding concluded Agreement which would now bind the Respondent Nos. 1 to 3 as well.

18. The Claimant states that in pursuance of the foregoing, the draft of the consent terms were also forwarded for approval through the Administrative Tribunal and to the Revenue Department, Government of Goa.

19. The Claimant states that owing to the ill health of Late Pascoal Trindade in the later part of the year 2021, and

thereafter his untimely demise, the entire process of obtaining the approvals as required by the Comunidade of Bambolim for the filling of the consent terms in suit bearing no.52/2013A were stalled.

20. The Claimant states that the factual matrix enumerated hereinabove clearly brings out that despite the Late Pascoal Trindade having addressed various communications to the Comunidade of Bambolim and to other authorities, which has been admitted by the Respondent No.1 in his deposition, the Respondent Nos. 1 to 3 have failed and neglected to come forth and render and co-operation for the closure of the proceedings and/or to execute the necessary documentation with respect to the same, which has resulted in the delay of the project and has jeopardised the investment made by the Claimant in the purchase and development of the said properties.

21.The Claimant states that since no one is representing the interest of Late Pascoal Trindade in the Special Civil Suit No. 52/2013/A pending before the Civil Judge Senior Division at Panaji, there is likelihood of an adverse Order being passed affecting the interest of the Claimant and also of that of M/s. Loonkar Developers Pvt. Ltd and M/s. Kuval Projects Pvt. Ltd.

22. The Claimant states that the Hon'ble High Court of Bombay at Goa vide Order dated 18/02/2025 has been pleased to extend the time to decide the Special Civil Suit No. 52/2013/A pending before the Civil Judge Senior Division at Panaji till 31/12/2025; however, the Suit is for Final hearing on 03/03/2025 as is evident from Roznama dated 04/02/2025 of Special Civil Suit No. 52/2013/A.

23.The Claimant states that it is an admitted position that the Respondent Nos. 1 to 3 have also failed to defend the interest of the Claimant and the Respondent No.4 in

proceedings CRVA/43/2019 and case No. CRVA/3/2020 initiated by Comunidade of Bambolim against the development permissions in the properties bearing Survey No. 93/2 and 93/4 of village Bambolim, and solely owing to the default on the part of the Respondent Nos. 1 to 3, the Hon'ble District Court vide order dated 30/10/2023 has been pleased to set aside the order dated 28/11/2019 passed by the Director of Panchayats, Panaji, Goa thereby occasioning huge loss of Rs. 20,00,00,000/- (Rupees Twenty Crores) to PVM associates and further losses to M/s. Kuval Projects Pvt. Ltd who was given the development rights in respect of the said properties and is bound to initiate proceedings against for the recovery of the losses occasioned to them.

24. The Claimant states that it is an admitted position that the Respondent Nos. 1 to 3 have also failed to defend the Civil Revision Application No.41/2018 instituted before the

Hon'ble High Court of Bombay at Goa against Order dated 23/10/2018 passed by the Civil Judge Senior Division in Case No.CRA/2/2016/B directing the holding of an enquiry in respect of the consent terms arrived in Case No.SCS/222/1994, which consent terms are the basis of the title to the said properties. The Hon'ble High Court owing to the non-appearance of the Respondent Nos. 1 and 3 has been pleased to dismiss the same as abated as the Respondent Nos. 1 to 3 have failed to co-operate and get impleaded as the legal heirs of Late Pascoal Trindade.

25. The Claimant therefore is constrained to move the present Application seeking interim reliefs from this Hon'ble Tribunal.

26. Pending hearing and final disposal of the Claim, the Claimant is entitled to an Order appointing the Claimant as a Receiver in respect of the said properties and removing the said properties from the custody of the Respondent Nos.

1 to 3 and committing the same to the custody and management of the Claimant and conferment upon the claimant all powers as to bringing, defending and settlement of suits and for the realisation, management, protection, preservation and improvement of the said properties, and the execution of documents as the owner himself has, or such of those powers as this Hon'ble Tribunal thinks fit.

27. Pending the hearing and final disposal of the Claim, the Claimant is entitled to an Order directing the Respondent Nos. 1 to 3 to deposit before this Hon'ble Tribunal or into an account as directed by this Hon'ble Tribunal an amount of Rs.20 Crores or such further amounts as directed by this Tribunal or to file an Affidavit of their movable and immovable assets before this Hon'ble Tribunal which can be attached by this Hon'ble Tribunal to secure the claim of the Claimant in the present proceedings.

28. Pending the hearing and final disposal of the Claim, the Claimant is entitled to an Order from this Hon'ble Court attaching the said properties on such terms and conditions as this Hon'ble Tribunal deems fit and proper.

29. The Claimant respectfully states and submits that it is evident that the Respondent No.1 to 3 are hell bent to defeat the rights of the Claimant, the Respondent No.4, themselves and also cause loss to M/s. Loonkar Developers Pvt. Ltd and M/s. Kuval Projects Pvt. Ltd. This itself warrants intervention by this Hon'ble Tribunal to protect the legal rights of the Claimant at the ad-interim stage itself.

30. The Claimant respectfully states and submits that the Claimant has clearly established a strong case higher than a prima facie case in its favour and has a great chance to succeed in the present arbitration proceedings.

31.The factual matrix enumerated hereinabove clearly demonstrates that the Balance of Convenience is in favour of the Claimant.

32.The Claimant respectfully submits that the subject matter of the present arbitration is property which is a rare commodity and not an article of ordinary commerce, therefore, the Claimant is likely to suffer irreparable loss if the interim reliefs as claimed for by the Claimant are not granted by this Hon'ble Tribunal.

33.In view of the above, the Claimant humbly prays that

PRAYERS

- a. This Hon'ble Tribunal be pleased to pass an Order appointing the Claimant as a Receiver in respect of the said properties and removing the said properties from the custody of the Respondent Nos. 1 to 3 and committing the same to the custody and management of the Claimant and conferment upon the claimant all

powers as to bringing, defending and settlement of suits and for the realisation, management, protection, preservation and improvement of the said properties, and the execution of documents as the owner himself has, or such of those powers as this Hon'ble Tribunal thinks fit;

- b. This Hon'ble Tribunal be pleased to direct the Respondent Nos. 1 to 3 to deposit before this Hon'ble Tribunal or into an account as directed by this Hon'ble Tribunal an amount of Rs.20 Crores or such further amounts as directed by this Tribunal or to file an Affidavit of their movable and immovable assets before this Hon'ble Tribunal which can be attached by this Hon'ble Tribunal to secure the claim of the Claimant in the proceedings pending before this Tribunal;

- c. This Hon'ble Tribunal by way of an of Order of Attachment secure the said properties against alienation or creation of any third party rights on such terms and conditions as this Hon'ble Tribunal deems fit and proper;
- d. Ex-parté ad-interim reliefs in terms of prayer clause (a) to (c) above
- e. Any other order or relief in the circumstances of the case.

Panaji – Goa

01.03.2025

VIKRAM C. SHAH

CLAIMANT

AFFIDAVIT IN SUPPORT

I, Vikram Shah, son of Chinubhai Shah, aged 74 years, Indian national and resident of 28, Capri, Manav Mandir Road, Walkeshwar, Mumbai, the Applicant herein, do hereby on solemn oath state as under:—

1. I say that I have read and understood the contents of the accompanying Application seeking interims reliefs and accordingly affirm the contents of the foregoing paragraphs 1 to 25, 29(part), 30(part), 31(part), 32(part) of the present Application to be true and correct to my knowledge as well as on the basis of the record available with me, whereas the contents of remaining paragraphs is based on legal advice which I believe to be true.

I say that the foregoing paragraph is true and correct.

Solemnly affirmed at Mumbai

on this _____ day of February, 2025.

Deponent

ANNEXURE A

AOP AGREEMENT DATED 17/09/2006

ANNEXURE B

SALE DEED DATED 30/03/2007

ANNEXURE C

SALE DEED DATED 10/11/2020

ANNEXURE D

FINAL COPY OF BALANCE SHEET AS ON 31/03/2022

ANNEXURE E

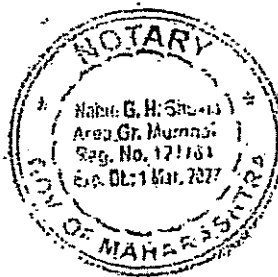
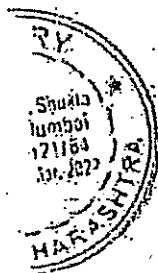
FINAL COPY OF BALANCE SHEET AS ON 31/03/2023

ANNEXURE F

FINAL COPY OF BALANCE SHEET AS ON 30/06/2023

ANNEXURE G

WORKING OF THE CAPITAL GAIN TAX PAYABLE



CERTIFIED TRUE COPY

H. B. NAMDARIAN (IRANI)
 Sindhi Sadhera Chawl,
 157, Worli Koliwada,
 Worli, Mumbai-400 025

